

Court No. - 21

Case :- WRIT - C No. - 66407 of 2012

Petitioner :- Rajveer Bhati

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- V.N. Mishra

Respondent Counsel :- C.S.C., Nripendra Mishra

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Het Singh Yadav, J.

The present Writ Petition has been filed, inter alia, praying for quashing the order dated 25.8.2012 (Annexure 7 to the Writ Petition), by which provisional assessment was made in respect of the petitioner, and the order dated 12.10.2012 (Annexure-10 to the Writ Petition), whereby final assessment has been made in respect of the petitioner.

It appears that checking was made in the premises of the petitioner and theft of electricity was alleged to have been committed by the petitioner. Checking Report dated 18th July, 2012 has been filed as Annexure- 6 to the Writ Petition.

Thereafter, provisional assessment was made in respect of the petitioner by the order dated 25.8.2012 (Annexure – 7 to the Writ Petition). The petitioner filed Objections on 20th September, 2012 against the provisional assessment. Copy of the said Objections is annexed as Annexure- 9 to the Writ Petition.

By the order dated 12.10.2012 (Annexure- 10 to the Writ Petition), the Respondent No. 3 decided the Objections submitted by the petitioner and made final assessment for an amount of Rs. 2,13,691/-.

The petitioner has thereafter filed the present Writ Petition seeking his reliefs mentioned above.

We have heard Sri V. N. Mishra, learned counsel for the petitioner, the learned Standing Counsel appearing for the Respondent No. 1 and Sri Rohit Pandey, learned counsel for the Respondent Nos. 2 and 3.

The learned Standing Counsel appearing for the Respondent No. 1 and Sri Rohit Pandey, learned counsel for the Respondent Nos. 2 and 3. have raised preliminary objection that against the final assessment made by the Respondent No. 3, the petitioner has got an alternative remedy of filing appeal under Section 127 of the Electricity Act, 2003, and in view of the existence of alternative remedy, the Writ Petition is liable to be dismissed.

Sri V. N. Mishra, learned counsel for the petitioner, submits that existence of alternative remedy is not an absolute bar and the Writ Petition may be entertained despite the existence of alternative remedy.

Having considered the submissions made by the learned counsel for the parties, we are inclined to accept the preliminary objection raised by the

learned Standing Counsel appearing for the Respondent No. 1 and Sri Rohit Pandey, learned counsel for the Respondent Nos. 2 and 3.

Sub-section (1) of Section 126 of the Electricity Act, 2003 provides for making provisional assessment. Sub-section (2) of Section 126 provides for service of the order of provisional assessment on the person affected.

Sub-section (3) of Section 126 provides for filing of objections by the person affected against the provisional assessment.

Sub-section (3) of Section 126 further contemplates passing of final order of assessment after considering the objections raised by the person affected against the provisional assessment and after affording reasonable opportunity of hearing to such person.

Sub-section (1) of Section 127 of the Electricity Act, 2003 provides that any person aggrieved by the final order made under Section 126 may prefer an appeal to the Appellate Authority within the time mentioned in the said provision. Clause 6.8 of the U.P. Electricity Supply Code, 2005 also contains provisions for Appeal against the final order of assessment.

The petitioner, thus, has an alternative remedy of filing appeal before the Appellate Authority under Section 127 of the Electricity Act, 2003, read with Clause 6.8 of the U.P. Electricity Supply Code, 2005, against the final assessment order dated 12.10.2012 made by the Respondent No. 3.

In view of the existence of alternative remedy of filing appeal against the order dated 12.10.2012 making final assessment in respect of the petitioner, we are not inclined to exercise our Writ Jurisdiction under Article 226 of the Constitution of India in the present case.

In view of the above, the Writ Petition is liable to be dismissed on the ground of existence of alternative remedy, and the same is accordingly dismissed on the said ground.

Order Date :- 18.12.2012

A. Pt. Singh